The more I read, the more I was convinced that a man was being sent to his death without a hearing, without him having had his day in court, despite three courts having heard his case.

I looked closely at the right to state legal aid. What I discovered shocked me even further. By law, the court is meant to maintain a list of lawyers who can be appointed for an accused. There is indeed a long list. Why was someone not chosen from this list to represent Afzal? A failure to do this naturally led to a 'friendly' lawyer, friendly to the prosecution, being foisted on the accused.

And here is the final injustice: A lawyer appointed at state expense is paid Rs 3000 for conducting a capital sentence case! What quality of legal representation can one expect in these circumstances? While senior lawyers today can charge unlimited amounts to represent the accused, how can Rs 3000 for the entire case be said to meet with any standard of reasonableness? The constitutional obligation is to provide *adequate* and *effective* representation, not just any representation, especially in death sentence cases. It is futile to argue that lawyers providing legal aid are meant to do so free of charge or for a pittance. This kind of volunteerism is not what the law requires. It is the obligation of the state to provide the legal aid and to fulfil that obligation appropriate fees must be paid, to ensure that competent lawyers appear for indigent accused. The National Legal Services Authority is well endowed with funds, much of which are used for conferences. It would be interesting to make an analysis of what proportion of the budget is used for legal aid and what proportion for air fares and conferences.

These are the considerations that compelled me to give a certificate that there had been a gross miscarriage of justice in Afzal's case and that a curative petition be filed to establish the primacy of the right to legal representation at state expense.

I met Afzal in Tihar Jail in my capacity as a lawyer. He was amazingly aware of what was happening to him. He confirmed every fact about the denial of legal aid. He knew the names of the four lawyers he had requested for, and who had allegedly declined to represent him (as mentioned earlier, there is no evidence to indicate that they were actually asked). He confirmed that Niraj Bansal was denying facts that he (Afzal) was admitting to and that, when he decided to get rid of him, the judge insisted on his continuance as a friend of the court. He confirmed that he cross-examined some of the prosecution